

MASTER SERVICES AGREEMENT

This Master Services Agreement ("**Agreement**") is made on **13th Oct 2025** ("**Effective Date**"), by and between:

SKUAD PTE LIMITED (UEN No.201920103Z), a company incorporated under the laws of Singapore, having its registered office at 68 Circular Road, #02-01, Singapore 049422 (including its parent company, Affiliates, subsidiaries and any company in the same or associated ownership or control) (hereinafter referred to as "**Skuad**" which term shall, unless the context requires otherwise, include its successors and permitted assigns);

AND

SF MEDIA & PR LTD, a company incorporated under the laws of United Kingdom, having its registered office at Unit 5 Javelin Enterprise Park, Javelin Way, Ashford, Kent, England, TN24 8DE and registration No. 12012043 and any company in the same or associated ownership or control (hereinafter referred to as "**Customer**" which term shall, unless the context requires otherwise, include its successors and permitted assigns).

Skuad and the Customer are hereinafter referred to, jointly as "**Parties**" and individually as a "**Party**".

WHEREAS:

- A. Skuad provides a technology platform and services, including but not limited to leasing, payroll processing and disbursement, contractor engagement, contractor management, visas and mobility, identifying co-working spaces, assistance with insurance coverage needs, devices acquisition assistance, services to discover (finding convenient and suitable candidates), assess and onboard talent as well as enable engagement and/or employment of Personnel (as defined below), management and consulting services, project services, and other related, allied and auxiliary services hereunder as further described in Section 1.17 ("**Skuad Services**" or "**Services**").
- B. Customer wishes to engage and appoint Skuad to provide certain Skuad Services to the Customer, subject to and in accordance with the terms of this Agreement, the Service Agreements/Local Country Annexes and Service Orders/Statements of Works executed pursuant to this Agreement.
- C. The Parties wish to enter into this Agreement for the purpose of recording the transactions between the Parties and other matters relating thereto.

NOW THE PARTIES HEREBY AGREE AS FOLLOWS:

1. DEFINITIONS.

In this Agreement, unless inconsistent with the context or otherwise specified, the following words and expressions shall have the following meanings:

- 1.1 "**Affiliate**" means any entity that directly or indirectly controls, is controlled by, or is under common control with a Party to this Agreement where control (including the terms "controlled by" and "under common control with") means the power to direct or cause the direction of the management and policies of the entity, whether through ownership of voting securities, by contract, or otherwise.
- 1.2 "**Applicable Laws**" means any statute, law, regulation, ordinance, rule, judgement, notification, order, decree, bylaw, permits, licences, approvals, consents, authorizations, government approvals, directives, guidelines, requirements or other governmental restrictions, or any similar form of decision, or determination, or any interpretation, policy or administration, having the force of law, by any authority having jurisdiction over the matter in question, to the extent applicable to Parties, the provision or receipt of Services, and/or employment/engagement or termination of the Personnel, whether in effect as of the Effective Date or thereafter.

- 1.3 **“Assignment”** means the specific services to be performed by any Personnel as part of their engagement, or the specific services being provided by Skuad, as described in the relevant Service Order or Statement of Work or mutually agreed between the Parties in writing, from time to time.
- 1.4 **“Confidential Information”** means and includes all information (whether written including on electronic media, or oral), furnished by a Party (hereinafter, the **“Disclosing Party”**) to the other Party (hereinafter, the **“Receiving Party”**), relating to the business of either Party or any of its Affiliates, including but not limited to, trade secrets, proprietary information, techniques, sketches, drawings, models, inventions, know-how, processes, apparatus, equipment, algorithms, software, software programs, and formulae related to the prior, current, future and proposed products and services of the Parties, and includes without limitation, each Party’s information concerning research, experimental work, development, design details and specifications, engineering, financial information, procurement requirements, purchasing, manufacturing, customer lists, business forecasts, sales and merchandising, and marketing plans and information. Confidential Information shall not include information or material that: (i) was already lawfully in the Receiving Party’s possession or known to the Receiving Party prior to being disclosed or provided to the Receiving Party by or on behalf of the Disclosing Party, provided that the source of such information or material, to the Receiving Party’s knowledge, was not bound by a contractual, legal or fiduciary obligation of confidentiality to the Disclosing Party or any other party with respect thereto; (ii) was or is obtained by the Receiving Party from a third party provided on a non-confidential basis, provided the Receiving Party does not know that such third party was bound by a contractual, legal or fiduciary obligation of confidentiality to the Disclosing Party; (iii) is publicly available or becomes publicly available through no action or fault of the Receiving Party; (iv) was otherwise independently acquired or developed by the Receiving Party without use of or reference to, the Disclosing Party’s Confidential Information, as shown by documents and other competent evidence in the Receiving Party’s possession; or (v) is disclosed with the prior written approval of the Disclosing Party.
- 1.5 **“Customer Account”** means an individualised account created by the Customer within the Platform, which is used to access and utilise the Services.
- 1.6 **“Data Protection Laws”** means all data protection and privacy laws, rules, regulations, and governmental orders, now or hereafter in effect, applicable to the Services and the Parties in the performance of their obligations or exercise of their rights under this Agreement.
- 1.7 **“Force Majeure Event”** means any events or circumstances beyond the reasonable control of the Party whose performance is affected thereby, including but not be limited to: (i) acts of God, i.e. fire, drought, flood, earthquake, epidemics, pandemics, natural disasters, deaths or disabilities; (ii) explosions, accidents, air crashes and shipwrecks; (iii) acts of war (whether declared or undeclared), hostilities of war, acts of terrorism, armed conflicts, riots, civil commotion, vandalism, or acts of civil or military authorities; (iv) strikes, lockouts or industrial dispute; (v) laws, regulations or orders issued by governmental authorities, including embargoes, sanctions or other legal restrictions, or required approvals that prevent or impede performance of the affected party’s obligations hereunder; (vi) grid failures, failure of services of telecom service providers, internet service providers or combination thereof affecting the performance of the affected party’s obligations; (vii) any event or circumstances analogous to the foregoing.
- 1.8 **“Intellectual Property Rights”** means and include, without limitation, all present and future intellectual property rights including but not limited to, patents, trademarks, service marks, trade names, copyrights, and applications, licences and rights with respect to the foregoing, all trade secrets, including know-how, inventions, discoveries, improvements, developments, designs, processes, works of authorship, manuals, documentation, technical data and information, database rights, moral rights or any other property rights (whether registered or unregistered) and any applications or registrations for the protection of these rights and all renewals and extensions thereof, existing in any part of the world whether now known or in the future created.
- 1.9 **“Local Country Annex (LCA) or Service Agreement (SA) or “Employee Leasing Agreement”** means the agreement, howsoever called, (substantially in the form set forth in Annex A of this Agreement or as otherwise mutually agreed), executed by the Parties (including via their Affiliates) in accordance with Applicable Laws relating to employment/engagement and termination of the Personnel, of a Specified Jurisdiction.

- 1.10 **"Misclassification"** means the incorrect classification of a consultant or contractor as an employee, or of an individual as a consultant or contractor when the individual legally qualifies as an employee, under applicable labour, tax, and employment laws of a Specified Jurisdiction.
- 1.11 **"Personal Data"** means any information or data relating to an identified or identifiable natural person or individual, as further defined under the Data Protection Laws.
- 1.12 **"Personnel"** means the employees, temporary workers, independent consultants, freelancers, contractors and/or any third-party individuals, engaged by Skuad or any of its Affiliates for provision of the Services, engaged by Skuad on behalf of and for the benefit of the Customer, and/or the consultants, freelancers, contractors and/or any third-party individuals engaged directly by the Customer for which Skuad processes and disburses payments.
- 1.13 **"Personnel Cost"** means any and all amounts/payments made or to be made to the Personnel or payable in connection with the Personnel's engagement (including the contractors/consultants), either as per Customer inputs or mandated under Applicable Laws, including but not limited to, salaries, bonuses, commissions, allowances, incentives, 13th month pay, holiday pay, sick leave pay (if applicable) or other similar payments, social security contributions, benefits (such as disability, insurance coverage, pension, paid time off), any additional remuneration for uninsured statutory leave, severance or similar payments, settlement payments, notice period payments, non-compete payments (if any), expenses, taxes, levies and any other costs paid or to be paid in connection with Personnel's engagement for the provision of the Services to the Customer.
- 1.14 **"Platform"** means the **Skuad Global HR Platform**, which is a licensed technology platform used to discover, assess, onboard, pay and manage Personnel across the globe.
- 1.15 **"Sanction Laws"** means all applicable laws, regulations, rules and orders related to economic or trade sanctions, embargoes or prohibitions imposed or administered by (i) the United States (including the U.S. Treasury Office of Foreign Assets Control (OFAC), the U.S. International Emergency Economic Powers Act (IEEPA), the U.S. Trading with the Enemy Act (TWEA), the U.S. Department of Commerce Bureau of Industry and Security, and the United States Department of State, (ii) Her Majesty's Treasury of the United Kingdom, (iii) the United Nations, or (iv) the European Union or any European Union member state, any other applicable laws or regulations relating to economic or trade restrictions or sanctions;
- 1.16 **"Sanctions Target"** means: (a) any country embargoed by the United States or any other relevant governmental authority, and any national of such country, Russia and Sudan (including their nationals); and (b) a person or entity denied, prohibited, debarred, or sanctioned under any Sanction Laws. This includes, but is not limited to, countries, persons and/or entities listed on the OFAC Specially Designated Nationals (SDN) List, the U.S. Department of State's State Sponsors of Terrorism List, the U.S. Department of State's list of Specially Designated Nationals, or any other similar sanctions lists maintained by relevant authorities.
- 1.17 **"Skuad Services"** mean the comprehensive range of Platform-based services provided by Skuad, including but not limited to:
- i. Consulting Services: Offering expert advice and project implementation in various domains, to enhance organisational efficiency and effectiveness.
 - ii. Deputation and Project Management: Facilitating the assignment of Personnel to different locations or projects, including management and execution of project deliverables.
 - iii. Leasing Services: Providing solutions for manpower and other necessary resources to support business operations.
 - iv. Employment Services: Acting as an employer-of-record (EoR) to manage employment relationships, ensuring compliance with local employment laws and regulations.
 - v. Payroll Services: Managing payroll processing, including salary disbursement, tax calculations, deductions and compliance with local regulations.
 - vi. Agent of Record (AoR) Services: Acting as an agent-of-record and engaging consultants and contractors (both for short-term and project-based assignments) for the benefit of the Customer and ensuring compliance with local laws and regulations.

- vii. Contractor Management Services (CMS): Facilitating the engagement and management of, and payment to the Personnel engaged directly by the Customer, both for short-term and project-based assignments.
- viii. Allied and Auxiliary Services: Skuad may, upon the Customer's request and for mutually agreed fees/charges as specified in the relevant invoice(s), provide additional support and related services that complement the primary offerings specified herein, including but not limited to the services specified below.
 - a. Visa Services: Assisting with the application, processing and management of work visas and permits for employees and their dependents working in different jurisdictions.
 - b. Co-Working Space Services: Offering access to co-working spaces equipped with necessary amenities to support remote and flexible working arrangements.
 - c. Insurance Support: support the acquisition of various insurance products and coverages offered by third party insurance services companies, including health, life and liability insurance, tailored to meet the needs of businesses and their employees.
 - d. Device Acquisition Support: Supplying and managing devices such as laptops, mobile phones, and other necessary equipment for employees to perform their duties.
 - e. Marketplace of Recruiters and Talent: Creating a platform for discovering, assessing and onboarding talent by connecting businesses with recruiters and job seekers.
 - f. Talent Discovery and Assessment: Utilising advanced tools and testing methodologies to identify, evaluate and select suitable candidates for various roles within an organisation; and
 - g. Onboarding Services: Streamlining the process of integrating new employees into an organisation, including documentation, orientation and training.

1.18 **"Specified Jurisdiction"** means the jurisdiction(s) in which the Services are provided and/or an Assignment is performed by the Personnel.

1.19 **"Service Order (SO) or Statement of Work (SOW)"** means the order form, howsoever called, (substantially in the form specified in Annex B of this Agreement or as otherwise mutually agreed), executed between the Parties (including via their Affiliates) in accordance with Applicable Laws of a Specified Jurisdiction for the specific Skuad Services to be provided (including Contractor Management Services, Consulting Services and/or project services), and/or for each Personnel (including contractors/consultants).

1.20 **"Timesheet"** means the record of hours worked each week/month and leaves availed, maintained by the Personnel and submitted via the Platform for review and approval by the Customer.

2. ENGAGEMENT AND SCOPE.

2.1 Pursuant to the terms of this Agreement, Skuad (including via its Affiliates) shall engage Personnel for the Customer, and/or manage and pay the Personnel engaged directly by the Customer, who shall perform the Assignment(s) as part of their engagement and perform the duties, responsibilities and tasks assigned by the Customer, as specified in the relevant SO/SOW or as mutually agreed by the Parties from time to time.

2.2 The Parties and the Personnel shall use the Platform for the provision and/or receipt of the Services, including:

2.2.1 Offering the Platform for the Personnel to create requests and undertake tasks, including, log hours worked, request and track leave, and submit invoices for salaries and business expenses.

2.2.2 Facilitating the Customer's review and approval of invoices and Timesheets maintained and submitted by the Personnel.

2.2.3 Disbursing payments to the Personnel, on behalf of and/or for the benefit of the Customer.

2.3 Customer shall be obligated to execute any changes to the scope of Services under any SO/SOW and Personnel related actions or communications, including but not limited to, increment, promotion, leaves related information, disciplinary process, serving of any notice, communicating the intention to terminate, or requesting termination of any Personnel, as required from time to time, within the Platform, and further agrees to not submit help requests (outside the Platform) for such actions or communications. The Parties agree that any communications made via any other mode, except within

the Platform shall not be considered valid. Customer shall be solely responsible for ensuring that all communications and actions of the Customer comply with the process specified in this Section 2.3.

- 2.4 Service Agreement or Local Country Annex. A SA/LCA shall include the operating terms applicable to the Services, Skuad Fee and Personnel Cost (as defined in Section 3 below), each Party's obligations and other pertinent information mutually agreed between the Parties, and compliance requirements in accordance with Applicable Laws of a Specified Jurisdiction. Each SA/LCA shall be effective when duly executed by the Parties and shall be subject to the provisions of this Agreement and deemed incorporated herein by reference. Further, each SA/LCA shall be treated as a separate and independent transaction between the Parties and/or their Affiliates under this Agreement. The Parties shall not be required to execute a SA/LCA for the Services where local employment laws of a Specified Jurisdiction do not apply (such as Agent of Record (AoR) Services and Contractor Management Services).
- 2.5 Service Order(s) or Statement(s) of Work. The Parties (including via their Affiliates) will additionally enter into separate Service Order(s) or Statement(s) of Work, for each Personnel, or for Consulting Services and/or project services. A SO/SOW shall set out the specific Skuad Services being provided, the Total Cost or Management Fees (as the case may be), terms and conditions applicable to such Personnel's (including consultants and contractors) engagement or Consulting Services and/or project services, scope of the project and details of the Assignment, type of engagement and specific requirements under Applicable Laws of the Specified Jurisdiction (if any).

3. FEES AND PAYMENT TERMS

- 3.1 Total Cost. The total cost to be paid or payable to Skuad by the Customer for the Skuad Services, and any Allied and Auxiliary Services rendered by Skuad upon the Customer's request, is specified in the SA/LCA read in conjunction with the relevant SO/SOW and invoice(s), and shall comprise: (i) a fee for the Services rendered by Skuad ("**Skuad Fee**"); (ii) **Personnel Cost**; and (iii) adjustments (as mutually agreed), costs/expenses/charges incurred by the Personnel during the performance of the Assignments and approved by the Customer via the Platform or in writing, such as travel expenses, stay expenses, food allowances, equipment reimbursements ("**Approved Expenses**"). Skuad Fee, Personnel Cost and Approved Expenses payable by the Customer to Skuad shall be referred to as the "**Total Cost**".
- 3.2 Management Fees. The Parties agree that for Consulting Services and/or project services, and any Allied and Auxiliary Services related thereto, the Total Cost shall be referred to as the "**Management Fees**" and specified in the relevant SA/LCA read in conjunction with the relevant SO/SOW and invoice(s). Management Fees shall include a fee for the Services rendered by Skuad ("**Skuad Fee**"), the monthly total cost of providing the Consulting Services and/or project services ("**Project Cost**"), and costs/expenses/charges incurred by Skuad in the provision of Consulting Services and/or performance of the Project Services and approved by the Customer via the Platform or in writing ("**Approved Expenses**"), payable by the Customer to Skuad.
- 3.3 The Total Cost or Management Fees (as the case may be) shall be exclusive of any applicable taxes (such as VAT, GST, consumption tax, stamp tax, or sales tax), bank charges, transaction fees/charges, currency conversion charges, repatriation costs (if applicable), or any other costs, expenses and/or deductions required to be paid in respect of any such payment by the Customer to Skuad. Customer shall pay to Skuad all such charges, expenses, costs, and/or deductions relating to Skuad's engagement of the Personnel or incurred in the provision of Employment Services, AoR Services, Contractor Management Services, Consulting Services and/or project services, in accordance with Applicable Laws (other than income taxes payable by Skuad on its own income). Currency conversion charges shall apply to cross-border non-like-to-like payments wherein the payment by Customer to Skuad and by Skuad to the Personnel is in different currencies, and shall range between 1.95% - 4% FX markup on the exchange rate (depending on the currency in which the Personnel are paid) on the date Skuad issues the invoice for the Personnel Cost/Total Cost under the relevant SOW(s).
- 3.4 Where applicable and specified in the relevant SA/LCA, SO/SOW and/or invoice, Total Cost or the Management Fees (as the case may be) shall also include:
- 3.4.1 indirect taxes incurred by Skuad in the provision of Services (such as VAT, GST, consumption tax, stamp tax, or sales tax); and

3.4.2 fees, costs and/or charges for any Allied and Auxiliary Services requested by the Customer (including, but not limited to, fees for Visa Services or other applications, including Visa Services for the dependants and renewals thereof (at the then-prevailing prices), document translations, non-compete and non-solicitation obligations related payments, and intellectual property letters and/or assignments, forms, or registrations thereof).

3.5 Invoicing. Skuad (including any of its Affiliates providing the relevant Skuad Services) shall issue invoices for the Total Cost or Management Fees as further set forth in the relevant SA/LCA, SO/SOW and/or invoice(s), in advance, and monthly or a per invoice basis (as specified in the relevant SO/SOW and/or invoice). Where Applicable Laws of a Specified Jurisdiction require any payments, bonuses, incentives et cetera, to be paid to any Personnel annually, Skuad reserves the right to accrue and charge the Customer for such annual bonuses or incentives (including 13th month pay, severance, holiday pay) on a monthly pro-rated basis (calculated based on the total annual bonus or incentive divided by twelve (12) months) and the invoice for such month shall reflect such pro-rated amount. If Customer does not provide any inputs or information relating to any Approved Expenses, charges and/or other costs to be paid to any Personnel before the cut-off date specified in the relevant SA/LCA, thereby resulting in delays or additional manual work for Skuad, Skuad reserves the right to issue off-cycle invoices to the Customer. Customer shall be liable to pay any costs incurred by Skuad due to such delay or issuance of off-cycle invoices. In the event the Customer does not approve, rejects or disputes any invoice or any portion thereof, it shall within two (2) days, provide a written explanation detailing the reasons for such non-approval, rejection, or dispute, failing which the invoice shall be deemed to be accepted.

3.6 Payment Term.

3.6.1 Customer must elect an option from the choices below for the payment term:

- i. The Customer shall pay Skuad within seven (7) days from issuance of the invoice.
- ii. The Customer shall pay Skuad through an auto-debit facility. Parties hereby agree that cancelling or changing the auto-debit authorization does not cancel the underlying payment obligation of the Customer.

3.6.2 For Contractor Management Services, upon receiving the Total cost (as set out in the relevant invoice) from the Customer, Skuad shall disburse the amounts to be paid to the Personnel within one (1) business day, via a third-party payment company or regulated institution to the Personnel's designated account specified within the Platform.

3.7 Reserve. Upon receipt of each SO/SOW by the Customer, and prior to engagement of any Personnel or commencement of Consulting Services and/or project services under a SO/SOW, Skuad shall (in addition to the Total Cost) immediately invoice the Customer for an applicable reserve amount to ensure proper performance of the specific Services under such SO/SOW ("**the Reserve**"). The Reserve shall be equivalent to or more than the notice period for termination of employment or engagement prescribed under the Applicable Laws of the Specified Jurisdiction, or the notice period as otherwise mutually agreed and specified in the agreement between Skuad and the Personnel and shall be specified in each SA/LCA and/or the relevant invoice(s). Notwithstanding the payment terms specified in Section 3.6 of this Agreement, Customer shall be obligated to pay the Reserve set forth in each invoice immediately upon issuance of such invoice. Skuad shall not be obligated to commence the provision of the Services under a SO/SOW or engage any Personnel until it has received the Reserve from the Customer. Skuad shall hold the Reserve, as lien, to cover all payments due to Skuad and/or the Personnel and the Parties hereby agree that the Reserve shall not accrue any interest. If the Reserve paid by the Customer under any SO/SOW, is utilized, in whole or in part, the Customer shall promptly restore the Reserve to its original amount, or Skuad may issue an invoice for the utilized portion of the Reserve which shall be payable immediately. Customer shall ensure that the Reserve remains at the required level throughout the term of the relevant SA/LCA or SO/SOW. In the event of termination of the relevant SA/LCA and/or SO/SOW, Skuad shall return the Reserve to the Customer after receiving the full and final settlement of all invoices under the relevant SA/LCA and/or SO/SOW.

3.8 Remedies. In the event the Customer breaches its payment obligations or fails to pay any invoice(s) for any portion of the Total Cost/Management Fees, the Reserve or other mutually agreed costs in accordance with Section 3.6, Skuad shall be entitled to (without derogating from any of its other rights under Applicable Laws, this Agreement or otherwise): (i) immediately suspend the provision of Services to the Customer and/or restrict the Services provided hereunder without prior notice (without relieving

the Customer's payment obligation); and (ii) charge interest at two percent (2%) per month on the overdue amount for the period of delay (from the due date until full payment is made), whether before or after judgement. Customer shall pay the interest together with the overdue amounts. In addition to all other rights and remedies available to Skuad under this Agreement and/or the Applicable Laws, and notwithstanding anything to the contrary contained herein, Customer shall be solely responsible for any liability, including without limitation, any and all fines, interest, penalties, administrative actions, claims, lawsuits, settlements, damages, losses, fees, costs and expenses (including legal fees), relating to or arising from Customer's non-payment or late payment of any amounts owed under this Agreement, any SA/LCA or any SO/SOW.

- 3.9 Skuad reserves the right to modify the Skuad Fee and payment terms specified herein or any other agreement relating hereto, upon prior notice of thirty (30) days to the Customer. Further, Skuad shall have the right to set off or adjust any amounts that the Customer owes Skuad against or from the amounts (including the Reserve) paid by Customer to Skuad.

4. OBLIGATIONS AND RESPONSIBILITIES OF SKUAD

- 4.1 During the term of this Agreement and in relation to provision of all Services hereunder, Skuad acknowledges and agrees that:
- 4.1.1 It shall provide the data and information related to the Services, support, and assistance, as reasonably requested by the Customer from time to time.
 - 4.1.2 It may require the Personnel to comply with the Customer's written policies and guidelines as delivered or made available by the Customer, provided that such policies comply with and do not violate any Applicable Laws and Skuad policies and guidelines.
- 4.2 For **Employment Services, Agent of Record (AoR) Services** and other Allied and Auxiliary Services, Skuad agrees to the following obligations and responsibilities, in addition to those specified in Section 4.1 of this Agreement and the relevant SA/LCA and SO/SOW:
- 4.2.1 It shall comply with any relevant statutory compliances required under the Applicable Laws of the Specified Jurisdiction, to the extent applicable to the provision of Employment Services, Agent of Record (AoR) Services and other Allied and Auxiliary Services in the Specified Jurisdiction, or to the Personnel engaged for the provision of the Services hereunder.
 - 4.2.2 It shall comply with Applicable Laws of the Specified Jurisdiction, both during the Personnel's engagement and in relation to its termination.
 - 4.2.3 It shall execute employment documentation or independent contractor/independent consultant agreement (as applicable) with the Personnel in accordance with Applicable Laws of the Specified Jurisdiction and shall assign such Personnel to perform the Assignment as required by the Customer.
 - 4.2.4 Subject to Applicable Laws of the Specified Jurisdiction, it shall provide appropriate instructions and directions to the Personnel as communicated by the Customer in writing, from time to time.
 - 4.2.5 Subject to Applicable Laws of the Specified Jurisdiction, it shall only engage such Personnel as mutually agreed by the Parties from time to time and shall discontinue the engagement of such Personnel as may be requested by the Customer from time to time, subject to the Customer complying all its obligations under the Agreement.
 - 4.2.6 As the legal employer of the Personnel, it shall execute all employment related notices, disciplinary processes and other engagement or employment related matters. Further, Skuad shall execute any changes to the Employment Services or Agent of Record Services and take any administrative actions (including termination or removal of any Personnel).
 - 4.2.7 Upon Customer's request relating to the termination or removal of any Personnel and Customer related actions made within the Platform, Skuad shall discontinue the engagement of such Personnel in accordance with the agreement between Skuad and such Personnel, the timelines specified in the relevant SA/LCA and/or SO/SOW and Applicable Laws of the Specified Jurisdiction. However, Skuad shall not be liable for any liabilities or claims arising out of such termination or removal, whether arising on or any time after such termination, removal or separation.
- 4.3 For **Consulting Services**, project services and other Allied and Auxiliary Services, Skuad agrees to the following obligations and responsibilities, in addition to those specified in Section 4.1 of this Agreement and the relevant SA/LCA and SO/SOW:

- 4.3.1 It shall provide Consulting Services, project services and other Allied and Auxiliary Services with reasonable care, skill and diligence, consistent with industry standards and practices and shall engage qualified Personnel in the provision of such services.
- 4.3.2 Upon Customer's request relating to the termination of any SO/SOW or reduction in the scope of services under any SO/SOW and related actions executed within the Platform, Skuad shall terminate the relevant SO/SOW or reduce the scope of services under such SO/SOW, in accordance with the timelines specified in this Agreement and the relevant SA/LCA and/or SO/SOW, and Applicable Laws of the Specified Jurisdiction. However, Skuad shall not be liable for any liabilities or claims arising out of such termination or reduction in scope of services, whether arising on or any time after such termination or reduction in scope.

4.4 For **Contractor Management Services**, Skuad agrees to the following obligations and responsibilities, in addition to those specified in Section 4.1 of this Agreement and the relevant SOW:

- 4.4.1 It shall provide the Contractor Management Services with reasonable care, skill, and diligence, consistent with industry standards and practices.
- 4.4.2 It shall engage a third-party payment company or a regulated institution to disburse payment of the Personnel Cost to the Personnel, thereby acting as the Customer's limited payment agent. The third-party payment company shall act as an intermediary for processing payments between Skuad and the Personnel, ensuring that payments are made in the manner as instructed by Skuad. Further the third-party payment company shall be solely responsible for executing the payment transfer (in accordance with its timelines and relevant industry standards) and ensuring that the payment is properly routed to the Personnel's designated account.

5. OBLIGATIONS AND RESPONSIBILITIES OF THE CUSTOMER.

- 5.1 During the term of this Agreement and in relation to receipt of all Services hereunder, Customer acknowledges and agrees that:
 - 5.1.1 It shall not do any acts or omissions that may prejudice Skuad's ability to comply with its obligations under this Agreement, any SA/LCA, and/or any SO/SOW.
 - 5.1.2 It shall not, directly or indirectly, instruct the Personnel to act or perform any Assignment, Consulting Services, project services et cetera, which are in violation of any Applicable Laws.
 - 5.1.3 It shall inform Skuad in writing within seven (7) days of any Material Changes in its business. **"Material changes"** for this Section means any change in overall business operations (i.e., ownership, management, financial conditions, line of business, registered address and place of business, protocol, owners/directors, etc.) that may impact the Customer's ability to perform their obligations under this Agreement, SAs/LCAs and/or the SOs/SOWs and/or meet the payment obligations pursuant to this Agreement, SAs/LCAs and/or SOs/SOWs.
 - 5.1.4 Customer agrees that Skuad's performance of the Services and its obligations is subject to the Customer providing all accurate and material information (Personnel information and related communications, invoicing details, et cetera), data and inputs, reasonable support and assistance, as required from time to time.
 - 5.1.5 It shall, at all times, maintain a safe, clean, and conducive work environment for the Personnel that is free from discrimination, harassment or any form of bias, in its office spaces, facilities, and for the Personnel performing any Assignments remotely, including where such office spaces and facilities are leased by Skuad for the Customer pursuant to this Agreement. If the Personnel report any concerns or issues related to the safety, suitability or discriminatory nature of the work environment, Customer shall address and rectify such concerns promptly to ensure continued compliance with its obligations.
 - 5.1.6 It shall not make any payments directly to the Personnel and immediately notify Skuad if any such direct payments are made. Any direct payment by the Customer to the Personnel shall constitute a material breach of this Agreement and Customer shall be liable to pay a penalty of one per cent (1%) of the Total Cost specified in the relevant invoice(s). Further, any direct payment by the Customer to the Personnel shall not affect the Customer's payment obligations hereunder and the Customer shall be obligated to pay to Skuad the Total Cost (as set forth in the relevant invoice(s), SA/LCA and SO/SOW).
 - 5.1.7 It shall not, in any event, communicate its intention to terminate any Personnel's engagement directly to such Personnel or directly attempt to terminate the engagement of any Personnel (except for Personnel engaged directly by the Customer), and shall immediately notify Skuad if it has communicated such intention or directly terminated any Personnel.

- 5.1.8 It shall not execute any agreement with any Personnel that is in breach of this Agreement and/or any LCA/SOW or may place Skuad in breach of this Agreement and/or any LCA/SOW, and/or violates any Applicable Laws of the Specified Jurisdiction.
- 5.2 For the **Employment Services, Agent of Record (AoR) Services**, and other Allied and Auxiliary Services, Customer agrees to the following obligations and responsibilities, in addition to those specified in Section 5.1 of this Agreement and the relevant SA/LCA and SO/SOW:
- 5.2.1 It shall provide accurate, complete, and timely information to Skuad and maintain proper records of the data corresponding to the Personnel (such as compensation data, working hours, leaves related information, overtime, holiday balances, et cetera), to enable Skuad to provide the Employment Services, Agent of Record (AoR) Services and other Allied and Auxiliary Services in accordance with this Agreement and Applicable Laws of the Specified Jurisdiction.
- 5.2.2 It shall be responsible for identification of competent Personnel (unless agreed otherwise by the Parties), ensuring that the Personnel have the authorizations, qualifications, credentials, and professional licenses required to effectively perform the Assignment under any SO/SOW, and conducting all background verifications checks and other procedures as required to be undertaken in connection with engaging the Personnel.
- 5.2.3 It shall recommend the job description (unless agreed otherwise by the Parties) and the terms and conditions applicable to the engagement shall be set out in the relevant SO/SOW. Further, Customer shall be solely responsible for any fraud, misstatement, or inaccuracy in any information and data provided by any Personnel.
- 5.2.4 It shall be responsible for assigning the tasks/work to be performed by any Personnel as part of their Assignment and overseeing their performance.
- 5.2.5 It shall supervise the Personnel and give proper and appropriate instructions and directions to the Personnel to enable them to effectively perform the Assignments under the relevant SO/SOW. Customer shall be obligated to inform Skuad of any absenteeism (not previously approved), delay or failure of any Personnel in performing any Assignments.
- 5.2.6 Customer shall make any requests (including for termination or removal of any Personnel) and execute any related actions within the Platform. Customer shall provide all information required by Skuad to implement and execute such removal or termination under the relevant SO/SOW and conduct all the formalities required to be done at its end and duly inform Skuad of the same.
- 5.2.7 Customer shall notify Skuad that a certain or all Personnel and their work will not be required in the future as soon as it becomes aware. Customer will be responsible, directly or via Skuad, for any costs arising from notice periods and any statutory dues for the termination of the Personnel. Customer shall fully cooperate with Skuad in relation to any legally required processes, including hearing processes and any applications to any competent authority or other relevant bodies, as required to give effect to the termination of any employment agreement between Skuad and the Personnel.
- 5.3 For **Consulting Services**, project services and other Allied and Auxiliary Services, Customer agrees to the following obligations and responsibilities, in addition to those specified in Section 5.1 of this Agreement and the relevant SA/LCA and SO/SOW:
- 5.3.1 It shall provide all information and instructions to Skuad, as required, from time to time, to enable proper performance of Consulting Services and/or project services by Skuad and its Personnel.
- 5.3.2 It shall not provide any directions or instructions relating to performance of Consulting Services and/or project services directly to the Personnel. Skuad shall notify the Personnel on any directions, guidance, information and/or instructions received from the Customer.
- 5.3.3 It shall not control or direct any Personnel as to how they perform the Consulting Services and/or project services.
- 5.3.4 In the event the Customer terminates any SO/SOW, or intends to reduce the scope of services under a SO/SOW, it shall provide all information required by Skuad to implement and execute such termination or reduction in scope of services under the relevant SO/SOW.
- 5.4 For **Contractor Management Services**, Customer agrees to the following obligations and responsibilities, in addition to those specified in Section 5.1 of this Agreement and the relevant SOW:
- 5.4.1 It shall be responsible for all statutory compliances required under Applicable Laws of the Specified Jurisdiction where the Personnel are engaged by the Customer.

- 5.4.2 It shall engage the Personnel directly and execute an independent contractor/independent consultant agreement or other documentation with the Personnel in accordance with Applicable Laws of the Specified Jurisdiction where the Personnel are engaged.
- 5.4.3 It shall provide all information and instructions to Skuad, as required from time to time, to enable Skuad to properly perform the Contractor Management Services.
- 5.4.4 In the event Customer intends to remove or terminate any Personnel's engagement, it shall communicate such intention to terminate and pay to Skuad any costs arising from notice periods and any statutory dues relating to the termination of the Personnel. Skuad shall only make the full and final pay-outs to any Personnel being terminated by the Customer, subject to and after receiving the payments (due for the Services rendered under any SOW) from the Customer.

6. CONFIDENTIALITY.

- 6.1 The Receiving Party shall, for the term of this Agreement and three (3) years thereafter, treat Confidential Information of the other Party as strictly confidential. Each Party shall: (i) restrict disclosure of the other Party's Confidential Information to employees, contractors, agents and affiliates solely on a "need to know" basis and for purposes of this Agreement; (ii) advise its employees, contractors and agents of their confidentiality obligations; (iii) require employees, contractors and agents to protect and restrict the use of the other Party's Confidential Information; (iv) use the same degree of care to protect the other Party's Confidential Information as it uses to safeguard its own Confidential Information, but in no event less than a reasonable degree of care; and (v) establish safeguards to prevent the compromise or unauthorized disclosure of Confidential Information. Each Party shall notify the other Party of any breach of the other Party's Confidential Information as soon as possible following determination of such breach. Receiving Party shall remain liable for any breach of confidentiality and non-use obligations by any of its employees, agents, and representatives. Upon termination or expiration of this Agreement, either Party shall promptly return all Confidential Information of the other Party.
- 6.2 The Receiving Party may disclose Confidential Information of the Disclosing Party where such disclosure is required pursuant to an order or request of a governmental agency or court of competent jurisdiction, provided that the Receiving Party gives prompt written notice to the Disclosing Party of any such order (to the extent permissible by Applicable Laws) and reasonably cooperates with the Disclosing Party at the Disclosing Party's request and expense to resist such order or to obtain a protective order to protect and preserve the Confidential Information. In such event, each Party agrees that it will furnish only that portion of the Confidential Information that is legally required and will exercise reasonable efforts to obtain reliable assurance that confidential treatment will be accorded to that portion of the Confidential Information and other information which is being disclosed.
- 6.3 The Parties acknowledge that disclosure of any Confidential Information by the Receiving Party may give rise to irreparable damage to the Disclosing Party or the owner of such information and, as a matter of law, such injury is inadequately compensable in damages. Accordingly, the Disclosing Party or such other party may seek injunctive relief without bond against the breach or threatened breach of confidentiality, in addition to any other remedies which may be available under the Applicable Laws.

7. DATA PRIVACY.

- 7.1 In this Section 7, the following terms shall have the following meanings:
 - 7.1.1 **"Data Controller"** means the natural or legal person, public authority, agency or other body which, alone or jointly with others, determines the purposes and means of the Processing of Personal Data and/or (if relevant under applicable Data Protection Laws), the entity which is required to comply with applicable Data Protection Laws.
 - 7.1.2 **"Data Processor"** means a natural or legal person, public authority, agency or other body which Processes Personal Data on behalf of the Data Controller.
 - 7.1.3 **"Data Subject"** means a natural person who is identified or identifiable, directly or indirectly, from the Personal Data.
 - 7.1.4 **"Personal Data Breach"** means a breach of security leading to the accidental or unlawful destruction, loss, alteration, unauthorised disclosure of, or access to, Personal Data transmitted, stored or otherwise Processed, or any similar or related definition under applicable Data Protection Laws.

- 7.1.5 **“Process/Processing/Processed”** means any operation or set of operations which is performed on Personal Data or on sets of Personal Data, whether or not by automated means, such as collection, recording, organisation, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction.
- 7.2 Data Protection Obligations:
 - 7.2.1 Both Parties shall act as independent Data Controllers and comply with applicable Data Protection Laws and industry standards in connection with the Processing of Personal Data pursuant to this Agreement.
 - 7.2.2 Each Party shall implement and maintain appropriate security measures, as further specified in the applicable Data Protection Laws, to protect Personal Data against unauthorized access, accidental loss, destruction, and alteration.
 - 7.2.3 The Parties shall ensure that any employees or representatives of such Party involved in the Processing of Personal Data are aware of their data protection obligations and are bound by appropriate confidentiality obligations.
- 7.3 Lawful Basis for Processing:
 - 7.3.1 The Parties shall ensure that any Processing of Personal Data is carried out on a lawful basis where required by applicable Data Protection Laws.
 - 7.3.2 Each Party shall obtain any necessary consents or authorizations from individuals or Data Subjects whose Personal Data is Processed pursuant to this Agreement.
- 7.4 Purpose and Scope of Processing:
 - 7.4.1 The Parties shall only Process Personal Data for the purposes specified in this Agreement and as permitted by applicable Data Protection Laws.
 - 7.4.2 The Parties shall not use Personal Data for any purposes other than those specified in this Agreement without first obtaining written consent from the other Party and complying with any requirements under applicable Data Protection Laws.
 - 7.4.3 The Parties shall not Process Personal Data for longer than such Processing is necessary to carry out their respective obligations under this Agreement, other than to comply with the requirements of Applicable Laws (including applicable Data Protection Laws) to which the Party is subject.
- 7.5 Rights of Data Subjects; Competent Authority Requests:
 - 7.5.1 Each Party shall assist the other Party to the extent reasonably possible, in responding to requests from Data Subjects exercising their rights under applicable Data Protection Laws.
 - 7.5.2 In the event that either Party receives a request directly from a Data Subject, such Party shall promptly notify the other Party and cooperate in responding to such request.
 - 7.5.3 The Parties shall notify and cooperate with each other if they receive any communication from a competent authority concerning the Processing of Personal Data.
- 7.6 Sub Processing:
 - 7.6.1 If either Party engages a Data Processor to Process Personal Data on its behalf, it shall: (i) ensure that the Data Processor is bound by appropriate contractual obligations including regarding the implementation of appropriate security measures to protect the Personal Data; and (ii) comply with all additional requirements under the applicable Data Protection Laws in respect of such engagement.
 - 7.6.2 Each Party shall remain fully liable for any actions or omissions of any Data Processor acting on its behalf.
- 7.7 Data Breach Notification:
 - 7.7.1 In the event of a Personal Data Breach involving Personal Data Processed under this Agreement, the Party that becomes aware of the breach shall promptly notify the other Party in writing.
 - 7.7.2 The Parties shall cooperate and provide reasonable assistance to each other in investigating and remedying any Personal Data Breach and to enable each other to comply with any obligations (e.g. notifications) under Applicable Laws.
- 7.8 Data Transfers:

7.8.1 If Personal Data is transferred to a country or territory outside the jurisdiction where the Data Subject resides, the Party which exports the Personal Data shall comply with any obligations under the applicable Data Protection Laws in respect of such transfer, including where relevant, ensuring that appropriate safeguards are in place to protect the Personal Data in accordance with applicable Data Protection Laws.

7.8.2 The Parties shall consult and cooperate in good faith to establish appropriate safeguards, which may include the use of standard contractual clauses or other approved mechanisms.

7.9 Records and Audits:

7.9.1 Each Party shall maintain appropriate records of its Personal Data Processing activities as required by applicable Data Protection Laws.

7.9.2 Upon reasonable request, each Party shall allow the other Party to conduct audits or inspections (once annually) to verify compliance with the provisions of this Section 7 and applicable Data Protection Laws, subject to reasonable notice and confidentiality obligations.

7.10 Term and Termination:

7.10.1 The obligations under this Section 7 (Data Privacy and Protection) shall survive the termination or expiration of this Agreement, as necessary to fulfil the Parties' respective data protection obligations.

8. INTELLECTUAL PROPERTY RIGHTS.

8.1 Retained Rights. This Agreement shall not affect the Intellectual Property Rights vested in either Party prior to the Effective Date or created or acquired independently of such Party's obligations under this Agreement, and in any modifications, derivatives or enhancements made thereto. Nothing contained in this Agreement shall be considered as either Party granting any licence or permission to the other Party to use its Intellectual Property Rights, except as provided under Section 8.2 below. Further, neither Party shall, directly or indirectly, claim any rights over the Intellectual Property Rights of the other Party.

8.2 Skuad Global HR Platform. Skuad and its licensors exclusively own all Intellectual Property Rights in and to the Platform and the Services rendered hereunder. Skuad, subject to the terms hereof grants to the Customer, a non-exclusive, non-sublicensable, non-transferable licence to access and use the Platform solely for the Customer's internal business purposes in connection with its receipt of the Services and in accordance with the Terms of Service of the Platform as may be in effect from time to time, available at <https://www.skuad.io/terms-conditions> ("**Terms of Service**"). In the event of any conflict between the terms of this Agreement and the Terms of Service, the terms of this Agreement shall prevail. Customer hereby agrees to not sell, license, rent, modify, distribute, copy, reproduce, transmit, publicly display or perform, publish, adapt, edit and/or create derivative works from any materials or content available on the Platform. Customer's use of the Platform or any content therein for any purpose not expressly permitted by this agreement is strictly prohibited.

8.3 Skuad agrees that all information and documents provided by the Customer to the Personnel are owned solely by the Customer and Skuad shall have no rights or claim to the same. All information, data, designs, reports, flow charts, diagrams, materials and other tangible or intangible material produced, created, developed, or reduced to practice by the Personnel during the Term directly resulting from tasks assigned to the Personnel shall be collectively known as the "**Deliverables**", and are the exclusive property of the Customer subject to timely payment of the Total Cost or Management Fees in accordance with Section 3. Deliverables shall be deemed to be "**works made for hire**", of which Customer shall be deemed the author. To the extent that any Deliverables are not deemed to be "works made for hire", and any rights referred to in this Section 8 do not vest with the Customer automatically as per the terms herein or through operation of law, Skuad and/or the Personnel hereby grant, assign and transfer to Customer all right, title and interest (including without limitation any and all Intellectual Property Rights), that is now or may be available, in any and all Deliverables to the Customer.

9. REPRESENTATIONS, WARRANTIES AND COVENANTS.

9.1 Each Party hereby represents and warrants that:

- 9.1.1 It is duly organized and has the full right and power to enter into and perform this Agreement in accordance with Applicable Laws.
 - 9.1.2 The person entering into this Agreement is authorized to sign this Agreement on behalf of such Party.
 - 9.1.3 It has taken independent legal advice in relation to entering into this Agreement and does so with full understanding of its obligations and liabilities hereunder.
 - 9.1.4 The execution and performance under this Agreement do not conflict with any law, regulation, court order, judgement, or arbitral award applicable to it or any obligations such Party has to any third party.
 - 9.1.5 There is no pending or threatened claim(s) that may prevent the Party from fulfilling its obligations hereunder and it will promptly notify the other Party in the event of such a claim.
 - 9.1.6 It has and shall obtain all necessary registrations, licenses and approvals required under Applicable Laws; and
 - 9.1.7 It shall, at all times, comply with all Applicable Laws (including applicable Data Protection Laws) in the performance of its obligations under this Agreement.
- 9.2 The Customer represents, warrants and covenants that:
- 9.2.1 Any individual(s) or signatory(s) executing this Agreement and other documents relating hereto, creating and administering the Customer Account and undertaking actions therein, have the authority and capacity to enter into this Agreement (including any SAs/LCAs, SOs/SOWs and other ancillary documents hereunder), legally bind the Customer and conduct acts on its behalf.
 - 9.2.2 Its use of the Platform and the Services will, at all times, comply with all Applicable Laws, this Agreement and other ancillary documents hereunder (including the Terms of Service).
 - 9.2.3 It shall, at all times, ensure that (i) it implements appropriate measures to safeguard its processes and systems; and (ii) the Personnel are not permitted to share Confidential Information, Personal Data and/or trade secrets of the Customer.
 - 9.2.4 It shall ensure that in the performance of any Assignments, the Personnel comply with (i) any specific territory, industry or sector related laws, regulations, guidelines and mandatory training obligations or requirements (if any) applicable to such Assignments and/or the Customer; and (ii) Customer specific requirements; and shall bear all costs associated therewith.
 - 9.2.5 It and, any third party for whom the Personnel perform any Assignments on Customer's behalf, shall hold, and maintain all necessary insurances in accordance with Applicable Laws of the Specified Jurisdiction (including any specific territory, industry or sector related laws, regulations and guidelines applicable to the Assignments and/or the Customer), to enable the Personnel to work on the Customer's or such third party's site, as the case may be.
 - 9.2.6 It does not have any permanent local establishment or other physical presence in any Specified Jurisdiction(s) where Skuad provides any Services to the Customer and shall immediately notify Skuad (in writing) if it establishes any permanent local establishment or any physical presence in any Specified Jurisdiction anytime during this Agreement; and
 - 9.2.7 The output or benefit of the Services and Assignments performed pursuant to this Agreement and the relevant SAs/LCAs and/or SOs/SOWs is intended solely for export purposes and shall not be used, distributed, sold, or otherwise made available for local consumption within the Specified Jurisdiction(s) where Skuad and the Personnel provide or perform such Services or Assignments, and Customer shall immediately notify Skuad (in writing) if any such Services or Assignments are for being consumed or used locally.
- 9.3 Skuad warrants that the Platform shall operate in material compliance with its published documentation and specifications under normal use and circumstances. Skuad shall use commercially reasonable efforts to maintain the availability of the Platform, subject to scheduled maintenance and Force Majeure Events. Skuad further represents and warrants that the Personnel are made aware of the terms of this Agreement and shall not have any interest, rights or claims in and to any Deliverables and/or Assignments performed pursuant to this Agreement.
- 9.4 Disclaimer of Warranties. Except as specifically set forth in this Agreement, Skuad does not make any representations or warranties relating to the Platform or the Services hereunder, and hereby explicitly disclaims all such representations and warranties, of any kind or nature, whether express or implied, statutory or otherwise, including without limitation, warranties of merchantability, non-infringement and fitness for a particular purpose, warranties relating to the nature, quality, background of the Personnel or any legal impediment relating to their engagement by Skuad, that the Services or use of the Platform will meet the Customer's needs, be error free or that its operation or use will be uninterrupted, to the

maximum extent permitted by Applicable Laws. Further, Skuad does not represent, warrant, or guarantee that the performance of any Assignments by the Personnel shall meet the Customer's needs or requirements and shall not be responsible or liable for the performance of any Assignments by the Personnel. Customer accepts and acknowledges that the Services and the Platform are provided "as-is" and "as available". The foregoing exclusions and disclaimers are an essential part of this Agreement and form the basis to determine the price charged for the Services. To the extent that Skuad cannot disclaim any warranty or representation as a matter of Applicable Law(s), the scope and duration of such warranty shall be the minimum as required under such Applicable Law(s).

10. TERM AND TERMINATION.

- 10.1 Term. This Agreement shall commence on the Effective Date and remain valid for twelve (12) months thereafter unless terminated earlier in accordance with the provisions of this Agreement (the "**Term**") and will automatically renew for successive terms of twelve (12) months each (each, a "**Renewal Term**").
- 10.2 Termination for Cause. Either Party may terminate this Agreement upon written notice if the other Party commits a material breach of this Agreement and such breach is not curable, or is not cured within thirty (30) days from the receipt of written notice of such breach ("**the Cure Period**"), or where any event occurs, or circumstances arise which give reasonable grounds to believe that the Customer is or will be unable to fulfil its payment obligations under this Agreement. Notwithstanding the foregoing, Skuad may terminate this Agreement immediately, upon written notice if the Customer is in breach of its payment obligations under this Agreement, any SA/LCA or SO/SOW hereunder and fails to cure such breach within seven (7) days.
- 10.3 Immediate Termination. Either Party shall have the right to terminate this Agreement immediately upon written notice to the other Party and without penalty, if the other Party: (i) commits a breach of Applicable Laws, including applicable Data Protection Laws and Sanction Laws; or (ii) voluntarily or involuntarily becomes the subject of a petition in bankruptcy or of any proceeding relating to insolvency, receivership, liquidation, or any other proceedings for the settlement of debts that is not dismissed or discharged within sixty (60) days after being commenced, or makes a general assignment for the benefit of its creditors, or admits in writing its inability to pay its debts generally as they become due, or takes any corporate action tantamount to such admission, or ceases its business operations.
- 10.4 Termination for Convenience. Either Party may terminate this Agreement for any reason by giving the other Party prior written notice of sixty (60) days.
- 10.5 Termination of SO/SOW. Customer shall provide Skuad with prior written notice (via the Platform) of at least five (5) business days of its intention to discontinue, terminate, or remove any Personnel engaged by Skuad on behalf of and for the benefit of the Customer, and/or reduce the scope of work under any such SO/SOW. Parties shall mutually discuss the issues (if any) and attempt to resolve such issues within five (5) business days. In the event such issues are not resolved within five (5) business days, either Party may terminate any such SO/SOW, for cause or for convenience, by giving the other Party prior written notice of at least sixty (60) days, or thirty (30) days above the legal notice period required by Applicable Laws of the Specified Jurisdiction/thirty (30) days above the notice period specified in the agreement between Skuad and the relevant Personnel, whichever is higher, and upon payment of the amounts set forth in Section 10.7. For the purposes of clarity, termination of any SA/LCA is subject to and contingent upon the termination of all SOs/SOWs executed pursuant to such SA/LCA in accordance with Applicable Laws of the Specified Jurisdiction. To the extent that Personnel are engaged directly by the Customer, the Customer shall not be required to provide a prior written notice of five (5) business days of its intention to discontinue, terminate, or remove such Personnel.
- 10.6 Effect of Termination. Termination or expiration of this Agreement does not affect the validity of any existing SAs/LCAs and/or SOs/SOWs. Any such existing SAs/LCAs and/or SOs/SOWs shall be effective for the term specified therein unless terminated by mutual agreement of the Parties in accordance with Applicable Laws of the Specified Jurisdiction.
- 10.7 Charges payable on Termination. Upon termination or expiration of this Agreement or any SA/LCA or SO/SOW, all outstanding invoices thereunder shall become due and payable within seven (7) days. Further, in the event of termination of any SAs/LCAs or any SOs/SOWs hereunder, termination or

removal of any Personnel, or reduction in the scope of services under any SO/SOW, for any reason whatsoever, Customer shall be solely responsible and liable to pay to Skuad (in accordance with the payment terms set out in Section 3.6): (i) Total Cost or Management Fees (as the case may be) payable up to the effective date of such removal, termination or reduction in scope of services; (ii) all charges, costs, expenses, liabilities, deductions and taxes relating to Skuad's engagement of the Personnel and/or incurred in the provision of Consulting Services and/or project services, or Contractor Management Services, as set forth in Section 3; and (iii) any and all costs (including legal costs), severance payments (if applicable), settlement or other related payments, compensation, indemnities, termination charges as justified by Skuad, or any other payments or considerations, however described, arising from and/or relating to the engagement or termination of any Personnel, or incurred due to termination of or reduction in the scope of services under a SO/SOW (including any costs and expenses related to any claims made by any Personnel in relation to such termination, whether on or any time after such termination, removal or reduction in the scope of services).

- 10.8 Survival of obligations. Any terms of this Agreement or obligations of the Parties that by their nature are intended to survive the termination or expiration of this Agreement, shall survive and continue in full force and effect after the termination or expiration of this Agreement, including but not limited to, Section 2, Section 3, Section 5 – Section 15.

11. INDEMNIFICATION.

- 11.1 By Skuad. Skuad agrees to indemnify, defend and hold the Customer and its employees, officers and directors ("**Customer Indemnified Parties**") harmless from and against any direct, actual and identified third-party claims, actions, suits and demands, and losses, damages, injuries, costs and expenses (including reasonable attorney's fees) arising out of such third-party claims to the extent directly and solely relating to:
- 11.1.1 Skuad's material non-compliance with Applicable Laws relating to the engagement and/or employment of the Personnel.
 - 11.1.2 failure of any employee of Skuad (excluding the Personnel) to materially comply with local laws of a Specified Jurisdiction relating to the engagement or employment of the Personnel, pensions, benefits or withholding tax.
 - 11.1.3 payment or failure to pay any salary, wages, pension, or other cash compensation to any Personnel in accordance with Applicable Laws of a Specified Jurisdiction provided that Customer has discharged its payments obligations in accordance with Section 3.6 of this Agreement.
 - 11.1.4 wilful misconduct or fraud by Skuad in connection with this Agreement; and
 - 11.1.5 Misclassification of any consultants or contractors engaged by Skuad (via an independent contractor agreement/independent consultant agreement between the consultants/contractors and Skuad) on behalf of and for the benefit of the Customer **PROVIDED THAT** Skuad shall not be liable to the Customer and/or any third parties for Misclassification that results from: (i) Customer's breach of this Agreement, any SAs/LCAs and/or SOs/SOWs, and/or any obligations or warranties thereunder; (ii) the previous employment/engagement of any consultants, temporary workers, freelancers and/or contractors by the Customer or any of its Affiliates; (iii) any policies or agreements (other than the independent contractor/independent consultant agreement) between the Customer and a consultant, temporary worker, freelancer and/or contractor; (iv) harassment, whistleblowing, victimisation or other unlawful discrimination against any consultants, temporary workers, freelancers and/or contractors by the Customer, its employees, or agents; (v) any subcontractors or third parties of the Customer; (vi) incidents, injuries, or actions that arose prior to the provision of AoR Services by Skuad; and/or that occur following termination of AoR Services; (vii) incidents, injuries, or actions that arise during a period in which Customer has either failed to make payments or delayed payments owed to Skuad and/or the Personnel for the Services hereunder; and (viii) changes to laws or regulations made after AoR Services have been terminated for a particular consultant, temporary worker, freelancer and/or contractor.
- 11.2 By Customer. Customer hereby agrees to indemnify, settle (at its sole expense), defend and hold Skuad, its Affiliates, parent company, subsidiaries and partners) and each of their employees, officers, directors, representatives, successors and agents ("**Skuad Indemnified Parties**") harmless, from and against all pre-litigation allegations, claims (including all claims made by third parties), suits, demands, actions, and for all liabilities, settlements, losses, costs, fines, penalties, taxes, damages, injuries, or

expenses (including attorney's fees, professional fees and other expenses) as incurred, that, in whole or in part, directly or indirectly, result or arise from or relate to:

- 11.2.1 material breach by the Customer of any of its obligations, responsibilities, covenants, representations, warranties and/or confidentiality obligations hereunder.
- 11.2.2 violation or infringement of any Intellectual Property Rights of Skuad or any third party, or misappropriation or misuse of the Platform by Customer and/or its employees.
- 11.2.3 death, personal injury and damage to property caused by Customer and/or its employees.
- 11.2.4 fraud, wilful misconduct, misrepresentation or gross negligence of Customer and/or its employees.
- 11.2.5 violation of Applicable Laws by Customer and/or its employees (including applicable Data Protection Laws, Sanction Laws, anti-bribery, anti-corruption, anti-terrorism and anti-money laundering laws).
- 11.2.6 Misclassification of any Personnel directly engaged by the Customer (including claims made by the contractors/consultants and/or regulatory authorities).
- 11.2.7 Customer's failure to comply with its obligations under 15.3 (Permanent Local Establishment), and/or breach of warranty or misrepresentation under Section 9.2.6 regarding its status as a non-resident entity; and
- 11.2.8 any aspect of the Personnel's engagement with Skuad and/or Customer or discontinuation, removal or termination of such engagement upon Customer's request or in compliance with Applicable Laws, or performance of any Assignments by such Personnel, whether arising on or any time after such discontinuation, termination, removal or reduction in scope, including but not limited to allegations or claims made by any Personnel that arise out of or relate to (i) violation of Applicable Laws, applicable Data Protection Laws, anti-discrimination and harassment laws, occupational health and safety laws, laws relating to engagement and/or employment (such as wages and hours, minimum wages, overtime laws and regulations, family or medical leave) by the Customer; (ii) discrimination, harassment or any personal injury caused by Customer and/or its employees; (iii) unfair, wrongful discharge, and/or constructive dismissal of the Personnel by the Customer or by Skuad on the Customer's request; and (iv) Customer's breach of any agreement, express or implied, between any Personnel and the Customer.

- 11.3 Indemnification Procedure. In the event a claim falls under the indemnification obligations of either Party, the indemnified party shall: (i) promptly notify the indemnifying party of any claim for which indemnification is sought (provided that the indemnified party's delay or failure to notify the indemnifying party will not diminish the indemnifying party's obligations under this Section 11, except to the extent that such failure or delay actually prejudices the defense of such claim); (ii) cooperate fully with the indemnifying party at the indemnifying party's expense; and (iii) allow the indemnifying party to control the defense and settlement of such claim (except where unreasonable) at the indemnifying party's sole expense. Indemnifying party shall not execute any settlement without the indemnified party's consent if such settlement requires an admission of liability or action on the part of the indemnified party other than to cease using any allegedly infringing or illegal content or services. The indemnified party shall always have the option to participate in any matter or litigation through counsel of its own selection at its own expense.

12. LIMITATION OF LIABILITY.

- 12.1 Liability for operational or workplace misconduct, actions, and omissions. Customer acknowledges that in relation to Employment Services, Agent of Record (AoR) Services, Contractor Management Services and Allied and Auxiliary Services, and other Services where the Personnel work under Customer's direction, instructions, and supervision, Customer shall be responsible for the management and supervision of the Personnel, assigning work, overseeing performance of the Assignments, supervising daily tasks and duties, and ensuring compliance with all workplace policies and safety regulations. Skuad's liability for any claims relating to Employment Services, Agent of Record (AoR) Services, Contractor Management Services and Allied and Auxiliary Services, and other Services performed under the Customer's direction, instructions, and supervision shall be limited to those directly related to its responsibilities as the legal employer, including compliance with Applicable Laws and local laws of a Specified Jurisdiction. Skuad shall not, in any event, be held responsible and/or liable for the Personnel's behaviour, conduct, actions, omissions, breach, negligence, misconduct, or performance of the Assignments in accordance with the Customer's requirements or specifications, and any claims or losses arising from or related

thereto. Customer shall be solely responsible for such claims, liabilities, or damages related to the Personnel's actions, behaviour, conduct or misconduct while performing the Assignments and other tasks and duties, including but not limited to delay and/or deficiency in performance, non-compliance with the Customer's instructions, harassment, theft, breach of Customer's policies and/or any unlawful activities.

- 12.2 Exclusion of Indirect and Consequential Losses. Notwithstanding anything to the contrary contained anywhere, under no circumstances will Skuad be liable for indirect, special, consequential, incidental, exemplary, or punitive losses or damages, or for loss of revenue, business profits, interest or anticipated savings, loss of goodwill or reputation, loss of or damage to records or data, penalties or third party claims for loss or damage or other compensation, even if it has been advised of the likelihood of occurrence of such damages or such damages are foreseeable, and regardless of the form of claim.
- 12.3 Limitation of Liability. Notwithstanding anything to the contrary contained elsewhere in this Agreement or in any SAs/LCAs, SOs/SOWs or other related documents thereto, the maximum aggregate liability of Skuad (including its Affiliates, parent company, subsidiaries, partners, and each of their shareholders, officers, directors, employees, agents and representatives) for any and all claims arising out of or related to this Agreement, any SAs/LCAs and/or SOs/SOWs, whether arising under contract, indemnity, tort (including negligence), breach of statutory duty, warranty, contribution or otherwise, shall not exceed the amount of Skuad Fee actually paid by Customer to Skuad under the relevant SOs/SOWs in the month immediately preceding the month during which such claim or such liability arises. THE FOREGOING EXCLUSIONS AND LIMITATIONS SET FORTH THE ENTIRE LIABILITY OF SKUAD TO THE CUSTOMER UNDER THIS AGREEMENT BUT SHALL NOT LIMIT THE CUSTOMER'S PAYMENT OBLIGATIONS HEREUNDER. NOTWITHSTANDING THE FOREGOING, THE LIMITATIONS SET FORTH UNDER THIS SECTION SHALL NOT APPLY TO THE EXTENT PROHIBITED UNDER APPLICABLE LAW.
- 12.4 Notwithstanding anything to the contrary contained herein, either Party's failure to perform or delay in performing its contractual responsibilities (in whole or in part), perform any part of the Services (including performance of Assignments by the Personnel), whether in conformance with this Agreement or at all, or to meet any agreed service levels shall be excused if and to the extent such party's non-performance is contributed to by the other Party's act or omission to act, delay, negligence, wrongful action, failure to provide inputs, or failure to perform its obligations.
- 12.5 Both Parties will, in all circumstances, use reasonable endeavours to mitigate any losses which are said to arise by reason of breach, negligence, or other default on the part of the other Party.

13. TRADE SANCTIONS.

- 13.1 Each Party represents that it (or any related/controlling company or controlling shareholder individual) is not a Sanctions Target and shall comply with Sanction Laws. Customer shall not do anything which may, directly or indirectly, cause Skuad to be in breach of any Sanction Laws.
- 13.2 Customer represents and warrants that:
- 13.2.1 It is not prohibited from receiving the Services, or any part thereof, due to any Sanction Laws and matters related thereto.
 - 13.2.2 It will not and will not permit any of its Affiliates and each of their respective employees, officers, directors, agents, representatives and/or third parties engaged by the Customer in any manner ("**Representatives**") to, directly or indirectly, export, re-export, transfer or otherwise deliver or use the Services in any country which is a Sanctions Target or otherwise facilitate any transaction in violation of any Sanction Laws.
 - 13.2.3 It will not, directly or indirectly, cause Skuad to engage, employ, manage or pay any Personnel who is a Sanctions Target, or cause performance of any Assignments by the Personnel in any country which is a Sanctions Target; and
 - 13.2.4 It and its Representatives shall, at all times, comply with Payoneer's [Global Sanctions Policy](#), to the extent applicable to the Customer.

- 13.3 Customer and its Representatives shall immediately notify Skuad of any changes in the Customer's and/or its Affiliates' registered address and any place of business, and/or any Personnel's residential address or place of residence; if such changes are to any country or region that is a Sanctions Target.
- 13.4 Customer and its Representatives shall immediately notify Skuad in writing if the Customer and/or its employees reasonably suspect or become aware of any actual or potential violation of Sanction Laws in connection with this Agreement (including any SA/LCA or SO/SOW hereunder) and shall fully cooperate in any investigation or remediation efforts required to address such violation at its own cost and expense.
- 13.5 Skuad reserves the right to carry out screening and background checks on the Customer, its Representatives, banking partners and/or financial institutions prior to the provision of Services or any Assignments hereunder, and at any time during this Agreement to ensure Customer's compliance with Sanction Laws. Customer shall provide all assistance to Skuad as reasonably requested by Skuad.
- 13.6 Skuad may not approve the travel of any Personnel to any country or region that is a Sanctions Target during the course of their engagement or employment, and may not approve reimbursement of any expenses (such as travel expenses, stay expenses, food allowances et cetera) incurred by any Personnel who is a Sanctions Target or incurred by the Personnel in any country or territory that is a Sanctions Target, and all such reimbursements may be prohibited, at the sole discretion of Skuad. Any such travel and reimbursement requirements shall be mutually discussed between the Parties and require explicit prior written consent of Skuad.

14. GOVERNING LAW AND DISPUTE RESOLUTION.

- 14.1 Governing Law. This Agreement shall be governed by and construed in accordance with the Laws of Singapore, excluding its conflict of law principles. Subject to Section 14.2 below, the courts in Singapore shall have exclusive jurisdiction over all matters arising pursuant to this Agreement.

14.2 Dispute Resolution Process.

- 14.2.1 If any dispute, controversy, claim or difference arises between the Parties during this Agreement in connection with the validity, interpretation, implementation or alleged breach of any provision of this Agreement, whether based on contract, tort, statute or other legal or equitable theory, the Parties shall endeavour, in good faith, to settle such dispute, controversy, claim or difference amicably within sixty (60) days, by way of consultations and good faith discussions between the Parties, which consultations and good faith discussions shall be initiated upon written notice by one Party to the other Party.
- 14.2.2 The attempt to bring about an amicable settlement shall be considered to have failed as soon as either Party, refers the dispute, controversy, claim or difference (after the sixty (60) days period set out in Section 14.2.1 has passed), to arbitration in Singapore, which shall be settled in accordance with the Arbitration Rules of the Singapore International Arbitration Centre ("**SIAC**") for the time being in force, which rules are deemed to be incorporated by reference into this clause. The seat of the arbitration shall be Singapore. The arbitration tribunal shall consist of one (1) arbitrator to be appointed by the President of the Court of Arbitration of the SIAC. All arbitration proceedings shall be in the English language.
- 14.2.3 The award rendered by the arbitrator shall, in addition to dealing with the merits of the case, fix the costs of the arbitration.
- 14.2.4 The award rendered by the arbitrator shall be final, conclusive, and binding on all Parties to this Agreement, whether or not such Parties have taken part in the arbitration and shall be subject to forced execution in any court of competent jurisdiction. Further, Parties hereby irrevocably and unconditionally waive and agree to not plead or claim that any such action, suit or proceeding brought in any such court has been brought in an inconvenient forum.

15. GENERAL.

- 15.1 Anti-Corruption. Parties shall comply with all anti-bribery and anti-corruption laws applicable to the Services and this Agreement, including the US Foreign Corrupt Practices Act of 1977 and the UK Bribery Act of 2010, and shall cause its employees, agents, and subcontractors to comply. Neither Party, to the best of its knowledge, has taken or received or will take or receive any payment, property,

gifts, or anything else of value in connection with this Agreement (excluding reasonable gifts and entertainment in the ordinary course of business).

- 15.2 Anti-Terrorism and Anti Money Laundering. Parties shall comply with all applicable anti-terrorism, anti-money laundering and financial crime prevention laws and regulations. Each Party agrees to not engage in any activity, transaction, or conduct that could cause the other Party to violate or become subject to penalties under such laws or regulations. Customer further acknowledges and agrees that any Assignments performed by any Personnel, shall not, directly or indirectly, relate to acts or activities with respect to terrorism and/or money laundering. In the event either Party becomes aware of any activity that violates or may violate such laws or regulations, it shall promptly notify the other Party in writing.
- 15.3 Permanent Local Establishment. Customer acknowledges and agrees that any permanent local establishment related risks or liabilities, in any Specified Jurisdictions where Services are provided, Personnel are engaged by Skuad and/or Assignments are performed by any Personnel, for the benefit of the Customer under this Agreement, any SA/LCA or SO/SOW hereunder, shall be the sole responsibility of the Customer. Skuad shall bear no responsibility or liability for, or provide any advice related to, any such risks or consequences.
- 15.4 Force Majeure. Neither Party shall be in breach of any obligation (other than payment obligations of the Customer) under this Agreement or be liable for any delay or failure in performance of any part of this Agreement to the extent such delay or failure in performance (whether partial or full) of the obligations is due to a Force Majeure Event. The Party claiming the benefit of Force Majeure shall give written notice to the other Party of the Force Majeure Event as soon as reasonably practicable and in any case within seven (7) days from the date on which such Party knew of the occurrence of a Force Majeure Event. Each Party shall make all commercially reasonable efforts to mitigate any delay or interruption caused to any performance of this Agreement because of a Force Majeure Event.
- 15.5 Change in Applicable Laws. After the Effective Date and anytime during this Agreement, if a change in any Applicable Laws or the enactment of a new regulation or legislation applicable to the Services and/or the Parties, has an adverse impact on the performance of the Services hereunder or renders the performance of the Services impossible, or increases the cost of providing the Services, Skuad shall notify the Customer of such change in Applicable Laws and its impact on the Services. The Parties shall, in good faith, renegotiate the terms and agree to appropriate amendments to this Agreement to ensure proper performance of the Services hereunder. In the event the Parties are unable to reach an agreement on the modifications required to this Agreement within thirty (30) days from the commencement of good faith discussions, Skuad may, upon written notice to the Customer, terminate this Agreement or the relevant SA/LCA or SO/SOW (as required). Further, if any change in Applicable Laws leads to an increase in the Total Cost or Management Fees, Customer shall remit such increased amount to Skuad with retroactive or immediate effect (as the case may be). Skuad shall, upon Customer's written request, provide documents evidencing such change/ increase in the Total Cost or Management Fees.
- 15.6 Due Diligence. Skuad may, at its sole discretion, conduct a thorough assessment and perform all necessary due diligence regarding the Customer both prior to the Effective Date and/or anytime during this Agreement. Such due diligence shall include, but is not limited to, verifying Customer's legal standing, financial stability, and compliance with Applicable Laws and industry standards. Skuad may further assess Customer's business operations, reputation, and any other relevant factors that may reasonably be necessary to evaluate the suitability of providing Services to the Customer. Customer shall provide reasonable assistance and cooperation requested by Skuad in connection with Skuad's due diligence efforts which includes providing access to relevant documents, records, and employees, and promptly and accurately responding to questionnaires, inquiries and/or requests for information.
- 15.7 Publicity. Each Party agree that this Agreement and its terms are confidential in nature and contain sensitive information and shall not be disclosed to any third party (except to its parent company, Affiliates, and subsidiaries for internal business purposes or for the purposes of providing or receiving services or offerings of other group companies) without the prior written consent of the other Party. Customer agrees that Skuad may refer to the Customer as a customer of Skuad, including by displaying the Customer's name and logo on Skuad's website and other marketing materials.

- 15.8 **Injunctive Relief.** Notwithstanding anything contained herein, each Party acknowledges that a breach of any terms contained in this Agreement could result in irreparable damage to the other Party for which there might be no adequate remedy at law, and in the event of such a breach or threat thereof, the other Party shall be entitled to all remedies available under Applicable Laws including but not limited to injunctive relief through any court of competent jurisdiction.
- 15.9 **Cumulative Remedies.** All remedies (including injunctive relief) provided for in this Agreement shall be cumulative and in addition to and not in lieu of any other remedies available to either Party at law, in equity or otherwise. The election by a Party of any remedy provided for in this Agreement or otherwise available to such Party shall not preclude such Party from pursuing any other remedies available to such Party at law, in equity, by contract or otherwise.
- 15.10 **No Waiver.** No waiver of any provision, entitlement, right or remedy under this Agreement shall be effective unless in writing and signed by the Party waiving such provision, entitlement, right or remedy. The failure of either Party to exercise any right or entitlement under this Agreement shall not be deemed to be a waiver of such right or entitlement in the future. Without limiting the foregoing, a waiver of any breach or default hereunder, or of any terms of this Agreement shall not be deemed to be a continuing waiver, or a waiver of any other breach, default, term or condition, but shall apply solely to the instance to which such waiver is directed.
- 15.11 **Severability.** If for any reason any provision of this Agreement is held to be unenforceable, that provision of the Agreement will be enforced to the maximum extent permissible so as to give effect to the intent of the Parties, and the remainder of this Agreement will continue in full force and effect, provided the fundamental terms of this Agreement are not altered.
- 15.12 **Assignment and Subcontracting.** Customer shall not be entitled to sub-contract, or assign any interest, right, duty or obligation under this Agreement, either in whole or in part, whether by operation of law or otherwise, without the prior written consent of Skuad. Skuad shall be free to assign, subcontract or outsource all or a part of its duties and obligations under this Agreement to its parent company, Affiliates, subsidiaries, group companies or other entities or use third party service providers or vendors in the provision of all or a portion of the Services to the Customer. Any assignment in violation of the foregoing shall be void. The terms of this Agreement shall be binding upon and inure to the benefit of the Parties, their successors, and permitted assigns.
- 15.13 **Notices:** Each notice, demand or other communication given or made under this Agreement shall be in writing and delivered or sent to either Party at the address and/or email address set out below. Any notice, demand or other communication addressed to such Party shall be deemed to have been delivered: (i) if delivered in person or by messenger, when proof of delivery is obtained by the delivering Party; (ii) if sent by post within the same country, on the fifth (5th) business day following posting; and (iii) if given or made by email, upon delivery of the email.

The address of the Parties for the purposes of communications and notices under this Agreement are:

If to SKUAD	If to CUSTOMER
Name: Skuad Pte Ltd	Name: SF MEDIA & PR LTD
Address: 68 Circular Road, #02-01, Singapore 049422	Address: Unit 5 Javelin Enterprise Park, Javelin Way, Ashford, Kent, England, TN24 8DE
Attention: Sundeep Sahi	Attention: William Selfe
Email: sundeepsa@payoneer.com and legal@skuad.io	Email: bill@forzaindustries.com

- 15.14 **Entire Agreement.** This Agreement (including all SAs/LCAs and SOs/SOWs hereunder) contains the entire agreement between the Parties in respect of the subject matter thereof and supersedes all prior understandings and agreements whether oral or in writing with respect thereto. The terms of this

Agreement shall govern all Services provided by Skuad and all Assignments performed by the Personnel under any SOWs/SOs, for the benefit of the Customer. In the event of a conflict between the provisions of the documents comprising this Agreement, the order of controlling precedence is: (1) this Master Services Agreement; (2) the relevant SA/LCA; (3) the relevant SO/SOW; (4) any other attachments and exhibits hereto.

- 15.15 Counterparts. This Agreement may be executed in two (2) or more counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument.
- 15.16 Amendments. No amendment, variation, modification, or alteration of any of the terms of this Agreement shall be of any effect unless in writing and signed by each of the Parties.
- 15.17 Relationship of Parties. The Services provided by Skuad to the Customer shall be provided on a non-exclusive basis. Skuad understands and agrees that it is being retained by the Customer as an independent service provider. Nothing in this Agreement shall be construed as creating a joint venture, partnership, principal-agent, or employment relationship between the Customer and Skuad.
- 15.18 The Parties acknowledge and agree that they have mutually negotiated the terms and conditions of this Agreement and that any provision contained herein with respect to which an issue of interpretation or construction arises shall not be construed to the detriment of the drafter on the basis that such Party or its professional advisor was the drafter of this Agreement.
- 15.19 Covenant of Cooperation and Good Faith. Each Party agrees that, in its respective dealings with the other Party in connection with this Agreement, it shall act in good faith.

IN WITNESS WHEREOF, the Parties have caused this Master Services Agreement ("**Agreement**") to be executed by their duly authorized representatives.

SKUAD PTE LIMITED By: _____ Name: Abhinav Charan Title: Director Date: _____	SF MEDIA & PR LTD By: _____ Name: William Selfe Title: CFO Date: _____
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